

FILED
2025 APR 23
CLERK
U.S. DISTRICT COURT

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF UTAH**

MATTHEW OLIVER REARDON,
Plaintiff, Pro Se,

v.

Civil Case No. 1:25-cv-00041-JCB

CITY OF LAYTON, UTAH, et al.,
Defendants.

**MOTION TO RESCIND PRIOR CONSENT TO MAGISTRATE JURISDICTION AND
TO RECUSE MAGISTRATE JUDGE JARED C. BENNETT**

TO THE HONORABLE COURT:

Plaintiff Matthew Oliver Reardon, appearing pro se, respectfully moves this Court to rescind his prior consent to magistrate jurisdiction under 28 U.S.C. § 636(c)(4), and to recuse United States Magistrate Judge Jared C. Bennett pursuant to 28 U.S.C. § 455(a) and (b).

I. GROUNDS FOR RESCINDING CONSENT

Plaintiff originally consented to magistrate jurisdiction in good faith and with the belief that such assignment would ensure expedited and impartial consideration of his civil rights complaint. However, since the Court entered a procedural stay on March 31, 2025, there has been no action on Plaintiff's IFP application, nor on two separately filed emergency motions to lift the stay.

As a result, Plaintiff has been prevented from filing or preserving verified declarations, evidentiary supplements, or his First Amended Complaint—despite documenting new and ongoing constitutional violations, including retaliation by federal agents.

Under 28 U.S.C. § 636(c)(4), a district judge may, for good cause shown, vacate a reference to a magistrate judge at any time prior to entry of judgment. Plaintiff respectfully asserts that good cause now exists, and the reference should be vacated.

II. GROUNDS FOR RECUSE

Pursuant to 28 U.S.C. § 455(a), a judge must recuse himself when his impartiality might reasonably be questioned. Section 455(b) also mandates recusal when the judge has a personal bias or prejudice concerning a party.

The continued refusal to act—despite two emergency filings outlining clear and ongoing constitutional harm—raises a legitimate concern about prejudice, judicial bias, or deliberate indifference. Plaintiff need not prove actual bias; the appearance of impartiality alone is sufficient.

The stay has had the effect of silencing Plaintiff, freezing the record, and shielding Defendants from scrutiny while real-time retaliation continues. In light of this, Plaintiff believes that continued proceedings before Judge Bennett will not be perceived as fair and impartial.

III. REQUEST FOR RELIEF

Plaintiff respectfully requests that the Court:

1. Rescind his prior consent to magistrate jurisdiction under 28 U.S.C. § 636(c)(4);
2. Recuse Magistrate Judge Jared C. Bennett from further proceedings under 28 U.S.C. § 455;
3. Reassign the case to a U.S. District Judge for de novo review of pending motions and filings;

4. Rule immediately on Plaintiff's Motion to Lift Stay and IFP application without further delay.

Respectfully submitted,

/s/ Matthew Oliver Reardon
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Dated: April 15, 2025